

GOVERNMENT OF INDIA

OFFICE OF THE CONTROLLER GENERAL OF PATENTS, DESIGNS & TRADE MARKS
Trade Marks Registry — Examination Report

Application No.: 4587231
Class: 5 (Ayurvedic & Herbal Preparations)
Applicant: Himalayan Herbal Labs Pvt. Ltd.
Mark Applied For: PURE HERBAL WELLNESS
Date of Application: 12/03/2026
Date of Examination Report: 22/07/2026
Date of Dispatch: 24/07/2026

OBJECTIONS RAISED

The application has been examined and the following objection(s) are raised under the Trade Marks Act, 1999:

1. Section 9(1)(a) — Absolute Grounds for Refusal

The mark 'PURE HERBAL WELLNESS' is devoid of any distinctive character and consists exclusively of indications which may serve, in trade, to designate the kind, quality, and intended purpose of the goods (i.e. herbal wellness products). The mark is therefore considered descriptive/laudatory in relation to the goods applied for in Class 5.

2. Section 11(1) — Relative Grounds for Refusal

The mark is similar to the following earlier registered/pending mark(s), and given the identity/similarity of goods, there exists a likelihood of confusion on the part of the public:

Cited Mark	App./Regn. No.	Class	Proprietor
PURE HERB WELLNESS CO.	3891204	5	Wellness Botanicals Ltd.

RESPONSE REQUIRED

The applicant is required to submit a response to this examination report, supported by evidence/arguments overcoming the above objection(s), **within one (1) month from the date of this report (i.e. on or before 24/08/2026)**, failing which the application shall be treated as abandoned under Rule 38(1) of the Trade Marks Rules, 2017.

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